

# HYPERCODE LLC

## PRIVACY POLICY

Effective Date: June 25, 2026 | Last Reviewed: June 25, 2026

HyperCode LLC ("HyperCode," "we," "us," or "our") respects your privacy and is committed to protecting the personal information you share with us. This Privacy Policy describes how we collect, use, store, disclose, and protect information obtained through our website at [www.hypercodeus.com](http://www.hypercodeus.com) (the "Platform"), our professional services engagements, staffing activities, and other interactions with clients, candidates, partners, and visitors (collectively, "you" or "Data Subjects").

This Privacy Policy is designed to meet or exceed the requirements of applicable data protection laws, including but not limited to the Illinois Personal Information Protection Act (PIPA), the California Consumer Privacy Act (CCPA), the General Data Protection Regulation (GDPR) where applicable, and other relevant federal and state privacy regulations. By using the Platform or engaging with our Services, you consent to the practices described in this Policy.

### PRIVACY AT A GLANCE

The following table provides a high-level summary. Please read the full Policy below for complete details.

|                 |                                                                                        |
|-----------------|----------------------------------------------------------------------------------------|
| Data Controller | HyperCode LLC, 2095 Hammond Dr Suite B, Schaumburg, IL 60173                           |
| Data We Collect | Contact details, usage data, professional/employment information, cookies              |
| How We Use Data | Service delivery, communications, staffing, platform improvement, legal compliance     |
| Data Sharing    | Service providers, staffing partners, legal authorities (as required), no sale of data |
| Data Retention  | As long as necessary for the stated purpose, subject to legal obligations              |
| Your Rights     | Access, correction, deletion, portability, opt-out — see Section 9                     |
| Contact         | Info@hypercodeus.com   +1 (800) 555-0199                                               |

### 1. INFORMATION WE COLLECT

HyperCode collects personal information through various means depending on the nature of the interaction. The categories of information we may collect include:

### 1.1 Information You Provide Directly

- **Contact and Identity Information:** Full name, job title, company name, business email address, phone number, and mailing address provided through consultation requests, contact forms, or during service engagements.
- **Professional and Employment Information:** For staffing and recruitment activities, we collect resumes, work history, educational credentials, professional certifications, references, and other career-related information provided by candidates.
- **Account and Contractual Information:** Information provided in connection with the execution of Statements of Work, Master Services Agreements, or other contractual documents, including authorized signatory details and billing information.
- **Communications Data:** Content of emails, messages, and other correspondence directed to HyperCode, including support inquiries and consultation scheduling requests.

### 1.2 Information Collected Automatically

- **Usage and Analytics Data:** IP addresses, browser type and version, operating system, referring URLs, pages visited, time spent on pages, click-stream data, and other technical identifiers when you interact with the Platform.
- **Device Information:** Device type, hardware model, unique device identifiers, and mobile network information.
- **Cookies and Similar Technologies:** We use cookies, web beacons, pixels, and similar tracking technologies as described in Section 7 below.

### 1.3 Information from Third Parties

- **Business Partners and Referrals:** Information shared by business partners, referral sources, or vendors in connection with potential engagements.
- **Publicly Available Sources:** Professional profile information from LinkedIn and similar professional networks, where relevant to staffing or business development activities.
- **Background Screening Providers:** For staffing engagements, we may receive background check results from authorized third-party screening providers, subject to candidate consent and applicable law.

## 2. PURPOSES AND LEGAL BASIS FOR PROCESSING

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HyperCode processes personal data for the following purposes:

### 2.1 Service Delivery and Contract Performance

We use personal information to fulfill contractual obligations, deliver professional services, manage client engagements, and communicate regarding project status, deliverables, and related business matters. This processing is necessary for the performance of contracts to which you or your organization are a party.

### 2.2 Staffing and Recruitment

For staffing services, we process candidate information to evaluate qualifications, match candidates to suitable opportunities, facilitate interviews, conduct reference and background checks (with consent), process employment placements, and maintain talent pipeline records. This processing is necessary for our legitimate business interests in providing staffing services and may rely on explicit candidate consent where required.

### **2.3 Business Communications and Marketing**

We may use contact information to send service-related communications, newsletters, industry insights, event invitations, and other marketing materials. Where required by law, we obtain prior consent. You may opt out of marketing communications at any time by following the unsubscribe instructions in any marketing email or by contacting us directly.

### **2.4 Platform Improvement and Analytics**

We analyze usage data to understand how visitors interact with the Platform, identify areas for improvement, and enhance the overall user experience. This processing is based on our legitimate interests in maintaining and improving our digital presence.

### **2.5 Legal Compliance and Risk Management**

We process personal data as necessary to comply with applicable law, respond to legal process, protect against fraud and security threats, enforce our contractual rights, and manage operational risks. This processing is based on legal obligation or our legitimate interests as applicable.

## **3. HOW WE SHARE PERSONAL INFORMATION**

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HyperCode does not sell, rent, or trade personal information to third parties for monetary or other valuable consideration. We may share personal information in the following limited circumstances:

### **3.1 Service Providers and Subprocessors**

We engage trusted third-party vendors and service providers to support our operations, including cloud infrastructure providers, CRM systems, applicant tracking systems, background check providers, payment processors, and analytics platforms. These providers are contractually bound to process personal data only on our behalf and in accordance with our instructions.

### **3.2 Staffing and Employer Clients**

For staffing engagements, with candidate consent, we share relevant professional information (resumes, skills summaries, availability) with employer clients seeking to fill technology roles. We ensure appropriate data protection terms are in place with all employer clients.

### **3.3 Legal and Regulatory Authorities**

We may disclose personal information where required by applicable law, court order, or government authority, or where we reasonably believe disclosure is necessary to protect the rights, property, or safety of HyperCode, our clients, or the public.

### **3.4 Business Transfers**

In the event of a merger, acquisition, restructuring, or sale of all or substantially all of HyperCode's assets, personal information held by us may be transferred to the acquiring entity, subject to equivalent privacy protections.

### 3.5 With Your Consent

We may share personal information for purposes not described herein with your prior written consent.

## 4. DATA RETENTION

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HyperCode retains personal information for as long as necessary to fulfill the purposes for which it was collected, to maintain business records, and to comply with applicable legal obligations. Our general retention guidelines are as follows:

- Client contact and engagement records: Retained for seven (7) years following the end of the client relationship, in accordance with standard business and tax record-keeping requirements.
- Candidate and talent pool records: Retained for up to three (3) years following the last meaningful interaction, unless you request earlier deletion or extended retention for future opportunities.
- Website analytics and usage data: Retained for up to twenty-four (24) months in identifiable form; thereafter retained in aggregated, anonymized form.
- Marketing communication records: Retained for the duration of the business relationship or until you withdraw consent, whichever is earlier.
- Legal and compliance records: Retained as required by applicable law, which may extend beyond the above periods.

Upon expiration of the applicable retention period, personal data is securely deleted or anonymized in accordance with our data lifecycle management procedures.

## 5. DATA SECURITY

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HyperCode employs a layered security program incorporating commercially reasonable administrative, technical, and physical safeguards to protect personal information against unauthorized access, disclosure, alteration, or destruction. Our security measures include:

- Encryption of data in transit using TLS 1.2 or higher.
- Encryption of sensitive data at rest using industry-standard algorithms.
- Role-based access controls limiting data access to authorized personnel on a need-to-know basis.
- Multi-factor authentication for systems containing personal data.
- Regular security assessments, vulnerability scans, and penetration testing.
- Employee training on data protection and information security practices.
- Vendor security assessments for third-party subprocessors.

In the event of a data security incident involving personal information, HyperCode will notify affected individuals and regulatory authorities as required by applicable law. You can report suspected security incidents to [Info@hypercodeus.com](mailto:Info@hypercodeus.com).

## 6. INTERNATIONAL DATA TRANSFERS

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HyperCode operates primarily within the United States. If you are located outside the United States and choose to provide information to us, you understand that your information may be transferred to and processed in the United States, where data protection laws may differ from those in your jurisdiction. Where required by applicable law, we implement appropriate safeguards for cross-border data transfers, including Standard Contractual Clauses approved by relevant data protection authorities.

## 7. COOKIES AND TRACKING TECHNOLOGIES

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### 7.1 Types of Cookies We Use

- **Strictly Necessary Cookies:** Required for the basic functioning of the Platform. These cannot be disabled.
- **Performance and Analytics Cookies:** Help us understand how visitors use the Platform (e.g., Google Analytics). We anonymize IP addresses where feasible.
- **Functionality Cookies:** Remember your preferences and settings to provide a more personalized experience.
- **Marketing Cookies:** Used to deliver relevant content and measure campaign effectiveness. These are only deployed with your consent.

### 7.2 Managing Cookie Preferences

You may control cookie settings through your browser settings or our cookie consent management tool. Disabling certain cookies may affect Platform functionality. Most browsers allow you to refuse new cookies, delete existing cookies, and receive alerts when new cookies are set.

## 8. THIRD-PARTY LINKS AND SERVICES

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The Platform may contain links to third-party websites, platforms, or services that are not operated by HyperCode. We do not control and are not responsible for the privacy practices or content of such third parties. We encourage you to review the privacy policies of any third-party service you access through the Platform.

## 9. YOUR PRIVACY RIGHTS

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Depending on your jurisdiction, you may have the following rights with respect to your personal information:

- **Right of Access:** The right to request a copy of the personal information we hold about you and information about how we process it.
- **Right to Rectification:** The right to request correction of inaccurate or incomplete personal information.
- **Right to Erasure:** The right to request deletion of your personal information, subject to applicable legal retention requirements.
- **Right to Data Portability:** The right to receive your personal information in a structured, commonly used, machine-readable format where technically feasible.
- **Right to Object:** The right to object to processing of your personal information based on legitimate interests or for direct marketing purposes.
- **Right to Restrict Processing:** The right to request that we restrict processing of your personal information in certain circumstances.
- **Right to Withdraw Consent:** Where processing is based on consent, the right to withdraw that consent at any time without affecting the lawfulness of prior processing.
- **Right to Non-Discrimination:** We do not discriminate against individuals who exercise their privacy rights.

### 9.1 California Residents (CCPA/CPRA)

California residents have additional rights under the California Consumer Privacy Act and California Privacy Rights Act, including the right to know about the categories of personal information collected, the right to opt out of the sale or sharing of personal information (HyperCode does not sell personal information), and the right to limit the use of sensitive personal information. To exercise your rights, contact us as described in Section 12.

### 9.2 EEA/UK Residents (GDPR)

If you are located in the European Economic Area or United Kingdom, you may have additional rights under the GDPR or UK GDPR, including the right to lodge a complaint with your supervisory authority. Our legal bases for processing are described in Section 2.

### 9.3 Submitting a Privacy Request

To exercise any of the rights described above, please submit a written request to [Info@hypercodeus.com](mailto:Info@hypercodeus.com) with the subject line "Privacy Rights Request." We will respond within thirty (30) days, or such other period as required by applicable law. We may need to verify your identity before processing your request.

## 10. CHILDREN'S PRIVACY

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The Platform and Services are not directed to individuals under the age of 16, and we do not knowingly collect personal information from children. If we become aware that we have inadvertently collected personal information from a person under 16 years of age, we will take prompt steps to delete such information. If you believe we may have collected information about a minor, please contact us immediately at [Info@hypercodeus.com](mailto:Info@hypercodeus.com).

## 11. CHANGES TO THIS PRIVACY POLICY

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HyperCode reserves the right to update or modify this Privacy Policy at any time to reflect changes in our practices, applicable law, or business operations. When we make material changes, we will revise the "Last Reviewed" date at the top of this Policy and, where appropriate, provide additional notice via email or a prominent notice on the Platform. We encourage you to review this Policy periodically. Your continued use of the Platform or Services following the posting of changes constitutes your acceptance of the revised Policy.

## 12. CONTACT US

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HyperCode is committed to resolving privacy concerns promptly and transparently. If you have any questions, concerns, or requests regarding this Privacy Policy or our data practices, please contact our Privacy Team:

**HyperCode LLC — Privacy & Compliance Team**

2095 Hammond Dr Suite B, Schaumburg, IL 60173

Email: [Info@hypercodeus.com](mailto:Info@hypercodeus.com)

Phone: +1 (800) 555-0199

Website: [www.hypercodeus.com](http://www.hypercodeus.com)

We will acknowledge receipt of your request within five (5) business days and provide a substantive response within thirty (30) days, or as otherwise required by applicable law.

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*This Privacy Policy was reviewed and approved by HyperCode LLC Legal & Compliance in June 2026.*